

Time off for family and dependants

1. Your rights

As an [employee \(/employment-status\)](#) you're allowed time off to deal with an emergency involving a dependant.

A dependant could be a spouse, partner, child, grandchild, parent, or someone who depends on you for care.

How much you get

You're allowed a reasonable amount of time off to deal with the emergency, but there's no set amount of time as it depends on the situation.

Example

If your child falls ill you could take time off to go to the doctor and make care arrangements. Your employer may then ask you to take [annual leave \(/holiday-entitlement-rights\)](#) or [parental leave \(/parental-leave\)](#) if you want to look after your child for longer.

[Tell your employer \(/time-off-for-dependants/taking-time-off\)](#) as soon as possible how much time you'll need so it can be agreed.

Limits on time off

There are no limits on how many times you can take time off for dependants. Your employer may want to talk to you if they think time off is affecting your work.

Pay

Your employer may pay you for time off to look after dependants but they do not have to. Check your contract, company handbook or intranet site to see if there are rules about this.

Exceptions

You cannot have time off if you knew about a situation beforehand. For example you would not be covered if you wanted to take your child to hospital for an appointment. You might get [parental leave \(/parental-leave\)](/parental-leave) instead.

Check your [employment status \(/employment-status\)](/employment-status) to see if you're classed as an 'employee'.

Compassionate leave

If you are not given time off for dependants, your employer may allow you 'compassionate leave' - this can be paid or unpaid leave for emergency situations. Check your employment contract, company handbook or intranet for details about compassionate leave.

2. What's an emergency?

You could get time off when a dependant is involved in the following emergencies.

Illness, injury or assault

This includes mental or physical illnesses that do not have to be life-threatening or need full-time care - it could be an existing condition that has worsened.

For example, if a dependant is mugged without being physically hurt, you could take time off to comfort or help them.

You can also take time off to arrange longer term care for a dependant.

Having a baby

You could take time off if a dependant goes into labour unexpectedly and they rely on you to take them to the hospital. You cannot take time off for dependants after the birth to care for the child, unless it's an emergency. However, if you're the child's parent you could be entitled to [paternity \(/paternity-pay-leave\)](/paternity) or [parental leave \(/parental-leave\)](/parental-leave).

Disruption of care arrangements

You could get time off if:

- a child minder or carer does not turn up to look after a dependant
- a nursing home or nursery closes unexpectedly

If your child is involved in an incident during school time

You could get time off if your child has been:

- involved in a fight
- injured on a school trip
- suspended from school

3. Taking time off

Tell your employer as soon as possible if you need time off. If it's an emergency, you may not be able to do this before you leave work but you should let your employer know as soon as possible.

You do not have to do this in writing or give written proof.

4. Problems when you take time off

Your employer must not:

- treat you unfairly for taking time off, for example refusing you training or promotion
- dismiss you or choose you for redundancy because you asked for time off for a dependant
- refuse you reasonable time off

If you think you've been unfairly treated for taking time off for dependants, get advice from your staff or trade union representative or Acas.

Acas helpline

Telephone: 0300 123 11 00

Textphone: 18001 0300 123 1100

Monday to Friday, 8am to 6pm

[Find out about call charges \(/call-charges\)](/call-charges)

You may be able to take a case to an [Employment Tribunal \(/employment-tribunals\)](/employment-tribunals).



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